

What You Can and Cannot Appeal

The follow-up to “What the New Law Says” — now read from the current appeals regulation, with the publishing gap named

Applications and Appeals (Ministerial) Regulation (AR 89/2007), as amended by AR 87/2026; and the Assured Income for the Severely Handicapped Act, as amended by Bill 12

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Why this document was rewritten

The July version of this document made a promise: it would not print a list of what you can and cannot appeal until it had read the appeals regulation word for word, and it would not fill any gap with a guess. When we wrote it, the only copy we could reach was four years out of date, so we said so, and we left the medical-determination question open.

We have now read the current regulation, in full, from the King’s Printer consolidation that is current to July 2, 2026. This rewrite does three things: it replaces the old five-item list with the current eleven-item list, word for word; it closes the open question on the medical determination, because the answer is now in hand; and it names something we can prove, which is stronger than what the July version could say.

The publishing gap, and you can check it in thirty seconds

The current text of the appeals regulation exists. It sits on the King’s Printer, consolidated up to AR 87/2026, current to July 2, 2026. It has eleven exempt items and it cross-references the new benefits regulation (AR 96/2026).

The free public copy does not. On Open Government, the database the government points people to, the Applications and Appeals (Ministerial) Regulation is still served as the consolidation **current as of April 1, 2022**. On that page

(open.alberta.ca/publications/2007_089) the Date Created, Date Modified, and Date Issued are all **2022-04-01**, and its own description still says the regulation is for “the Assured Income for the Severely Handicapped program” — AISH only, with no mention of ADAP, seven weeks after ADAP came into force.

So a disabled person who goes looking, on the database the government sends them to, for the list of decisions they may appeal is handed a four-year-old list that names a repealed regulation and the old section of the Act that Bill 12 replaced. The current list is a paid catalogue item on a different site. That is an access gap, and it sits inside the one document a person needs when a benefit is cut.

Everything below is read from the current King’s Printer consolidation, not the stale public copy.

Three different things, three different answers

“ADAP has no appeals” gets repeated everywhere, and it collapses separate things that split separate ways. Keeping them apart is the whole point of this document.

What it is	Can you appeal it?
1. The move — being transferred from AISH to ADAP	No. Barred by the Act itself (s.12.8). The transfer happens automatically by deeming, so it was never a director’s decision to appeal.
2. A benefit cut or change — for example an employment-related cut under section 15(4)	Yes. It is not on the exempt list. Appeal in writing within 30 days.
3. Certain named decisions — repayment demands, debt collection, income proration, a decision to grant a personal benefit, and more	No for the ones named on the list below.
4. The medical determination — the AISH Medical Review Panel finding that you are not eligible for AISH	No, that one is final (item (e) below). But the decision <i>not to refer</i> your file to that Panel, and the ADAP medical-eligibility decision, are appealable to the Medical

Appeal Panel.

The right to appeal still exists

Bill 12 did not abolish the right of appeal. It moved it into a new section of the Act and kept the same rule it always had: you can appeal a director's decision unless a regulation exempts it.

"A person affected by a decision of a director ... may appeal that decision if (a) the decision is not exempt from appeal under the regulations, and (b) the appeal is made in writing to an appeal panel within 30 days ..." — AISH Act, new section 10.1(1), added by Bill 12 (SA 2025 c20), in force July 2, 2026.

So the whole question turns on which decisions the regulations mark as "exempt from appeal." That list is section 6 of the appeals regulation. Here it is, current, in full.

The exempt list, in full — the current eleven items, word for word

Decisions exempt from appeal 6 The following decisions of a director are exempt from appeal: (a) a decision under section 7(4) of the Act respecting whether to exempt a person from the requirement to repay an amount or value of a benefit; (b) a decision under section 9(4) of the Act to take action to collect a debt due to the Government; (c) a decision under section 2(4) of the Assured Income for the Severely Handicapped General Regulation respecting whether to exempt a person from the application of section 2(2)(d) of that Regulation; (d) a decision under section 2(8) of the Assured Income for the Severely Handicapped General Regulation to require repayment of a personal benefit; (e) a decision under section 3(1)(a) of the Assured Income for the Severely Handicapped General Regulation respecting whether a person has a severe disability that permanently prevents employment, unless the Minister has specified the decision under section 10(2)(e) of the Act as a type of decision respecting which an appeal panel may hear appeals; (f) a decision under section 8(5) of the Assured Income for the Severely Handicapped General Regulation respecting whether an applicant or client refuses a transfer to a continuing care home or a discharge from the hospital to the community; (g) a decision under section 13(6) of the Assured Income for the Severely Handicapped General Regulation

respecting whether to exempt a person from the application of section 13(5) of that Regulation; (h) a decision under section 15(1)(b)(i) of the Assured Income for the Severely Handicapped General Regulation to refuse, suspend, vary or discontinue a benefit; (i) a decision under section 20(2) of the Assured Income for the Severely Handicapped General Regulation to deduct an amount or value of a benefit that the client must repay under section 7 of the Act or a debt due to the Government by the client; (j) a decision under section 6(5) of Schedule 1 to the Assured Income for the Severely Handicapped General Regulation to apply income to, or prorate income over, a different or longer period; (k) a decision under section 7(1)(a) or (b) of Schedule 3 to the Assured Income for the Severely Handicapped General Regulation to provide a personal benefit.

Source: Applications and Appeals (Ministerial) Regulation, AR 89/2007, section 6, as repealed and replaced by AR 87/2026 (Ministerial Order 1/2026, made April 27, 2026, filed April 29, 2026, Alberta Gazette Part II, May 15, 2026, pages 236 to 238). King's Printer consolidation current to July 2, 2026.

In plain words, what those eleven exemptions shut out

- **(a)** A decision on whether to let you off repaying a benefit.
- **(b)** How the government goes about collecting a debt from you.
- **(c)** A decision on whether to exempt you from a specific eligibility rule (section 2(2)(d)) on a reinstatement.
- **(d)** A demand that you repay a personal benefit.
- **(e)** The AISH medical determination — whether you have “a severe disability that permanently prevents employment.” This is the one that decides whether you are on AISH. It is exempt, unless the Minister has specified it as appealable. See the section below on where the medical line is drawn.
- **(f)** A finding that you refused a transfer to a continuing care home, or a discharge from hospital.
- **(g)** A decision on whether to exempt you from a specific asset rule (section 13(5)).
- **(h)** A cut for not claiming or assigning a federal benefit such as CPP or Old Age Security. This is the only benefit *cut* on the whole list.
- **(i)** Deducting a debt you owe out of a benefit or an underpayment.
- **(j)** A decision to apply or spread your income over a different or longer period.
- **(k)** A decision **to provide** a personal benefit — the special goods and services

benefit, which covers medical supplies and equipment, special diets and supplements. Read strictly, “to provide” exempts the decision **to grant** one. A **refusal** to provide is not obviously covered by these words, so a refusal may still be appealable. This is worth pressing, given the past case where the program wrongly claimed a personal-benefit decision could not be appealed.

What is NOT on the list, and therefore can be appealed

The employment-related benefit cut under section 15(4) — a cut for refusing, reducing or ending reasonable work, or for not taking part in an employment support — is not named anywhere on the exempt list. On the current regulation, it is appealable. We had earlier suggested it might be exempt. Reading the regulation ourselves, it is not, and we would rather correct that in writing than leave a wrong impression standing. That correction holds against the current list.

A correction to our own July correction, made against the current text. In July, reading the four-year-old five-item list, we told you that a decision applying your income to a single period instead of spreading it was also not on the list, and so was appealable. On the **current** list it is item (j), and it is **exempt**. We are flagging our own reversal plainly, because the point of this document is that it reads the live text, and the live text moved. So, precisely: the income-proration decision is exempt; the employment cut under section 15(4) is not.

The medical determination — the open question, now closed

The July version could not tell you whether the AISH Medical Review Panel decision was made final by the regulation or asserted in policy ahead of it. That is now answered, and the answer is the first one: it is in the regulation.

The current section 6(e) exempts the AISH medical determination — “whether a person has a severe disability that permanently prevents employment” — from appeal, “unless the Minister has specified the decision under section 10(2)(e) of the Act.” So the exemption the government relies on is real and it is in the current text. The reason it was missing from the copy we could reach in July is the publishing gap above: the exemption was added in the 2026 package, and the free public database still serves the 2022 version that predates it. It was a publishing delay, not an unsupported assertion.

Where the line falls, from the government's own appeal pages:

- **You can appeal** whether you have a severe disability, whether you should be referred to the AISH Medical Review Panel, and whether you are medically eligible for ADAP. These go to the Medical Appeal Panel.
- **You cannot appeal** the AISH Medical Review Panel's own determination that you are not medically eligible for AISH, and you cannot appeal the transfer of your file from AISH to ADAP.

So the line is finer than "anything to do with the medical panel is final." You can challenge the gateway — the refuse-to-refer decision and the ADAP medical decision. You cannot challenge what the AISH Medical Review Panel decides once your file reaches it.

One limit, kept from July and stated plainly: the words of the ministerial specification under section 10(2)(e) are not published — ministerial orders are not gazetted. The government's appeal pages describe its effect, but the order itself would have to come through an access-to-information request. We are pursuing that; until it lands, the description above is the government's own, not the instrument's words.

If you are going to appeal, the things that decide it

Thirty days. The appeal must be in writing to the appeal panel within 30 days of being notified of the decision. If you are late, the Minister can extend the time for good cause, but do not rely on that. File on time.

The rule that catches almost everyone. The appeal panel is not allowed to look at anything the program did not already have when it made the decision:

"An appeal panel must not consider any information other than that considered by the director in making the decision that is being appealed." — Applications and Appeals (Ministerial) Regulation, AR 89/2007, section 5(1.1) (not changed by AR 87/2026).

So put everything in before the decision is made, or before you file. New evidence handed to the panel at the hearing cannot be used. If you have information the program did not consider, the other route is to ask the program to look again with the new information, which is a separate path from an appeal.

This document reads from the current King's Printer consolidation of AR 89/2007 (current to July 2, 2026, as amended by AR 87/2026), the AISH Act as amended by Bill 12, and AR 96/2026. It is peer information, not legal advice. For your own situation, confirm with the program in writing.

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